

Israr Husain v. State of U.P. — Clause 6.5 billing dispute; recovery to abide Executive Engineer

High Court of Judicature at Allahabad · Division Bench · 1 May 2018 · WRIT - C No. 15680 of 2018 · **Writ disposed; recovery to abide Executive Engineer's Clause 6.5 order.**

HEADNOTE

A consumer challenged a recovery citation as doubtful in light of an Executive Engineer endorsement on his 19 March 2010 application. Treating the controversy as a billing dispute under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the Court held the Executive Engineer is the competent authority and must himself enquire into the alleged wrong bill rather than calling upon the Sub Divisional Officer. An assessment dispute would lie under the Electricity Act. The petition was disposed with a direction to place the order before the fourth respondent within one week; the Executive Engineer is to pass an order after enquiry within three weeks, and recovery shall abide that order.

FACTUAL SUMMARY

Israr Husain challenged a recovery citation, contending it was doubtful because of an endorsement by the Executive Engineer on his application dated 19 March 2010. He had already approached the Executive Engineer for redress of his grievances. The controversy appeared to be a billing dispute; the Executive Engineer had called upon the Sub Divisional Officer to examine the correctness of the alleged wrong bill rather than deciding it himself.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — Executive Engineer competent; recovery to abide his order

HOLDING

A billing dispute under Clause 6.5 is to be resolved by the Executive Engineer as the competent authority; he must himself enquire into the correctness of the alleged wrong bill and not call upon the Sub Divisional Officer to examine it. An assessment dispute would lie under the Electricity Act. Recovery on the impugned citation shall be carried out only after the Executive Engineer passes an appropriate order following enquiry, and shall abide that order. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED WRONG BILL AND VALIDITY OF THE RECOVERY CITATION

Left to the Executive Engineer after enquiry; recovery to abide that order. ¶ 1